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April 15, 2025

ENGROSSED HOUSE
BILL NO. 2151

By: Hall of the House

and

Sacchieri and Jett of the Senate

An Act relating to education; creating the Federal Education Guidance Disclosure Act; requiring the State Department of Education to publish certain documents on a website; prescribing publication timeframe; construing website creation timeline; mandating use of hyperlinks; directing retention of certain rescinded documents; stating retention requirements; defining term; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-162 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Federal Education Guidance Disclosure Act".

B. Within five (5) days of receiving a guidance document from the United States Department of Education, the State Department of Education shall publish the guidance document on an Internet website

1 designated by the State Superintendent of Public Instruction unless
2 the guidance document contains sensitive or confidential information
3 not legal to disclose due to privacy laws.

4 C. 1. The State Department of Education shall create the
5 designated Internet website for publication described in subsection
6 B of this section no later than ninety (90) days after the effective
7 date of this act.

8 2. The State Department of Education shall include hyperlinks
9 on the Internet website, in a conspicuous manner, that provide
10 access to the guidance documents received pursuant to subsection B
11 of this section.

12 D. If a guidance document is rescinded by the United States
13 Department of Education, the State Department of Education shall
14 maintain the rescinded guidance document at the location described
15 in subsection C of this section and indicate within fifteen (15)
16 days of such rescission:

17 1. That the document has been rescinded; and

18 2. The date the document was rescinded.

19 E. For purposes of this section, "guidance document" means a
20 federal agency statement of general applicability, other than a rule
21 that has the force and effect of law promulgated in accordance with
22 the notice and comment procedures under 5 U.S.C., Section 553, that
23 is designated by an agency official as setting forth a policy or
24 interpretation on a statutory, regulatory, or technical issue. A

1 guidance document may include, but is not limited to, a memorandum,
2 notice, bulletin, directive, letter, or no-action letter. The term
3 guidance document shall be construed broadly to effectuate the
4 purpose and intent of this act.

5 SECTION 2. This act shall become effective November 1, 2025.

6 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION
7 April 15, 2025 - DO PASS
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